

M/s Ganesh Laxmi Rice v. U.P. Electricity Regulatory Commission

High Court of Judicature at Allahabad · Division Bench · 3 January 2022 · Writ-C No. 32705 of 2021 · Writ-C No. 32705 of 2021 · **Writ disposed of by consent; UPERC directed to decide the pending ss. 142/146/147 petition in accordance with law, preferably within eight weeks; no opinion on merits.**

HEADNOTE

On a consent disposal, the Allahabad High Court directed the U.P. Electricity Regulatory Commission to decide, in accordance with law and preferably within eight weeks, a pending petition seeking action under sections 142, 146 and 147 of the Electricity Act, 2003 against a licensee for issuing a recovery certificate of Rs. 53,38,064 allegedly without authority and in breach of the Act and the U.P. Electricity Supply Code, 2005. The Court expressed no opinion on merits.

FACTUAL SUMMARY

M/s Ganesh Laxmi Rice petitioned the Allahabad High Court for a mandamus directing the U.P. Electricity Regulatory Commission to decide, within a fixed time, a petition it had emailed on 13 September 2021. That petition sought prosecution of the second respondent under sections 142, 146 and 147 of the Electricity Act, 2003 for issuing a recovery certificate of Rs. 53,38,064 allegedly without authority and in breach of the Act and the U.P. Electricity Supply Code, 2005. Commission counsel stated the petition would be decided within eight weeks.

HOLDING-UNITS

HOLDING-UNIT · EA2003::142

time-bound UPERC disposal of pending s.142 petition

HOLDING

With the parties' consent and without expressing any opinion on merits, the Court disposed of the writ by directing UPERC to decide the petitioner's pending petition (emailed 13.9.2021) seeking action under ss. 142, 146 and 147 of the Electricity Act, 2003 against the licensee for issuing a recovery certificate of Rs. 53,38,064 allegedly without authority and in breach of the Act and the U.P. Electricity Supply Code, 2005, in accordance with law expeditiously, preferably within eight weeks of being served with this order and a copy of the petition, after hearing all concerned including the petitioner. ¶ 1

PRINCIPLE TAGS

uperc-directed-to-decide-pending-s142-petition

By consent, UPERC was directed to decide the rice mill's pending ss. 142/146/147 petition challenging a Rs. 53.38 lakh recovery certificate as issued without authority, in accordance with law within eight weeks, with no opinion on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE OF RS. 53,38,064 WAS ISSUED WITHOUT AUTHORITY OR IN BREACH OF THE ELECTRICITY ACT, 2003 AND THE U.P. ELECTRICITY SUPPLY CODE, 2005, AND WHETHER ACTION UNDER SS. 142, 146 AND 147 SHOULD FOLLOW

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1